

Court No. - 21

Case :- WRIT - C No. - 37137 of 2022

Petitioner :- Dhanraj Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Mohd. Samiuzzaman Khan, Abdul Momin

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The petitioner is aggrieved by issuance of a recovery certificate by Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd. for recovery of a sum of Rs.2,12,848/- from the petitioner. The recovery certificate mentions that a demand notice was sent to the petitioner on 7.12.2021, but since the petitioner had not deposited the dues, therefore, the recovery certificate is being issued for recovery of the amount as arrears of land revenue.

The case of the petitioner is that he was not given any opportunity of hearing before assessing the amount in question.

Sri N.K. Tiwari, learned counsel appearing on behalf of respondent no.3 has placed on record the instructions received by him. It reveals that a provisional bill dated 13.8.2021 was sent to the petitioner by registered post on 21.8.2021. The documents do not show that any final assessment order has been passed against the petitioner.

Under Clause 6.8 of the U.P. Electricity Code, 2005, a detailed procedure is prescribed for making assessment in case of unauthorized use of electricity. It specifically provides for giving fifteen working days time to the consumer for submitting reply. Thereunder, personal hearing is also to be given to the consumer. Thereafter a speaking order has to be passed which should contain brief of inspection report, submissions made by the consumer in his written reply and during hearing.

We are coming across large number of cases where the aforesaid procedure is not being followed. In some cases, recovery certificates are being issued on basis of provisional assessment order, while in certain other cases, the provisional assessment order is being held to be final and conclusive without ensuring proper service of the order of provisional assessment and also without complying with the requirement of passing a speaking order. The aforesaid slipshod approach of the Authority is giving rise to unnecessary litigation and is burdening the docket of this Court.

We require the Managing Director, Purvanchal Vidyut Vitran Nigam Ltd. to call for report from all the Executive Engineers of different districts under him in matters where recovery proceedings have been initiated as regards compliance of the mandatory provisions and compile the data in form of a chart and produce the same before this Court alongwith his affidavit. He shall also disclose therein the steps that are taken to ensure that proper procedure is followed by the assessing authority.

List as fresh on 18.01.2023.

Sri N.K. Tiwari shall communicate the instant order to the concerned official for due compliance.

Until the next date of listing, recovery in pursuance of the impugned recovery certificate shall remain in abeyance.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 4.1.2023

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Petitioner :- Dhanraj Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Mohd. Samiuzzaman Khan, Abdul Momin

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

In compliance of our order dated 4.1.2023, the Managing Director, Purvanchal Vidyut Vitran Nigam Limited has filed his personal affidavit stating therein that he has issued a circular letter dated 9.1.2023 directing all officers to strictly comply with the provisions of the Electricity Supply Code, 2005 while making assessment in cases of unauthorized use of electricity. It is also stated therein that the data as has been required by previous order is being compiled and will be supplied shortly.

Sri M.C. Chaturvedi, learned Additional Advocate General appearing for the DISCOM states that the data will be supplied within three weeks. He has placed on record for our perusal the communication dated 13.1.2023 whereby the Executive Engineer has written to ADM (Finance and Revenue), District Fatehpur for withdrawal of the recovery in pursuance to our order dated 5.1.2023. The affidavit filed by the Managing Director does not disclose whether any final assessment order was passed in the instant case or straightaway recovery certificate was issued. In our order we also never directed for recovery being withdrawn and, therefore, we find that recital to the said effect in the communication sent by Executive Engineer is an attempt to overreach the Court which is a matter of serious concern and should be dealt with on the administrative side.

On the request of Sri M.C. Chaturvedi, learned Additional Advocate General, we adjourn the instant matter for three weeks so that required data is furnished.

List as fresh on 13.2.2023.

Order Date :- 18.1.2023

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(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)

Court No. - 40

Case :- WRIT - C No. - 37137 of 2022

Petitioner :- Dhanraj Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Mohd. Samiuzzaman Khan, Abdul Momin

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard Shri Mohd. Samiuzzam Khan, learned counsel for petitioner alongwith Shri Abdul Momin, Advocate and Shri M.C. Chaturvedi, learned Senior Advocate assisted by Shri N.K. Tiwari, learned counsel for Purvanchal Vidyut Vitran Nigam and Shri R.K. Tiwari, learned Standing Counsel for State respondents.

The present writ petition has been preferred questioning the validity of impugned notice Paper-2 dated 04.04.2022 issued by Executive Engineer/Authorised Officer, Purvanchal Vidyut Vitran Nigam Ltd., Vidyut Vitran Khand-I, Fatehpur asking the petitioner to pay Rs.2,12,848/-, as recovery amount. Further it is prayed to command the respondents to accept the due amount in installments.

The Co-ordinate Bench of this Court while passing the order dated 04.01.2023 has proceeded to observe that while issuing the recovery citation, the respondents are giving a go-bye to clause 6.8 of U.P. Electricity Supply Code 2005 and other procedure prescribed under the Electricity Act. It would be apt to reproduce the order dated 04.01.2023:-

"The petitioner is aggrieved by issuance of a recovery certificate by Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd. for recovery of a sum of Rs.2,12,848/- from the petitioner. The recovery certificate mentions that a demand notice was sent to the petitioner on 7.12.2021, but since the petitioner had not deposited the dues, therefore, the recovery certificate is being issued for recovery of the amount as arrears of land revenue.

The case of the petitioner is that he was not given any opportunity of hearing before assessing the amount in question.

Sri N.K. Tiwari, learned counsel appearing on behalf of respondent no.3 has placed on record the instructions received by him. It reveals that a provisional bill dated 13.8.2021 was sent to the petitioner by registered post on 21.8.2021. The documents do not show that any final assessment order has been passed against the petitioner.

Under Clause 6.8 of the U.P. Electricity Code, 2005, a detailed procedure is prescribed for making assessment in case of unauthorized use of electricity. It specifically provides for

giving fifteen working days time to the consumer for submitting reply. Thereunder, personal hearing is also to be given to the consumer. Thereafter a speaking order has to be passed which should contain brief of inspection report, submissions made by the consumer in his written reply and during hearing.

We are coming across large number of cases where the aforesaid procedure is not being followed. In some cases, recovery certificates are being issued on basis of provisional assessment order, while in certain other cases, the provisional assessment order is being held to be final and conclusive without ensuring proper service of the order of provisional assessment and also without complying with the requirement of passing a speaking order. The aforesaid slipshod approach of the Authority is giving rise to unnecessary litigation and is burdening the docket of this Court.

We require the Managing Director, Purvanchal Vidyut Vitran Nigam Ltd. to call for report from all the Executive Engineers of different districts under him in matters where recovery proceedings have been initiated as regards compliance of the mandatory provisions and compile the data in form of a chart and produce the same before this Court alongwith his affidavit. He shall also disclose therein the steps that are taken to ensure that proper procedure is followed by the assessing authority.

List as fresh on 18.01.2023.

Sri N.K. Tiwari shall communicate the instant order to the concerned official for due compliance.

Until the next date of listing, recovery in pursuance of the impugned recovery certificate shall remain in abeyance."

In compliance of the order dated 04.01.2023, Shri M.C. Chaturvedi, learned Senior Advocate has placed reliance on the supplementary affidavit filed by the Managing Director, Purvanchal Vidyut Vitran Nigam Ltd., DLW, Bhikharipur, Varanasi. The same is taken on record. The relevant paragraphs 7, 8 and 9 are reproduced as under:-

"7. That, on the basis of data submitted by Zones, there are 45553 cases of provisional assessment order have been issued since 01.04.2021 till date. Out of aforesaid cases recovery certificate has been issued in 14241 cases. The provision of clause 6.8 of the U.P. Electricity Supply Code 2005 has been complied in 13710 cases. The recovery certificate withdrawn in remaining 531 cases.

8. That, the recovery proceedings initiated against the petitioner to recover amount of Rs.2,12,848/- as arrears of land revenue on account of the theft of electricity. The aforesaid proceedings were initiated without complying the provisions of Clause 6.8 of U.P. Electricity Supply Code 2005 as such the same was withdrawn vide order dated 13.01.2023 by the concerned Executive Engineer. The Executive Engineer issued letter to withdraw the recovery certificate by mentioning "in compliance of the Order passed by the Hon'ble Court dated 05.01.2023" instead of mentioning "in compliance of the letter No.308 dated 13.01.2023 issued by the deponent for strict compliance of provisions of Clause 6.8 of U.P. Electricity Supply Code 2005. The show cause notice has been issued to the concern Executive Engineer.

9. That, the deponent promptly issued a Letter No.235 dated 09.01.2023 directing all the Chief Engineers (Distribution)/Superintending Engineers/Executive Engineers of all the Zones/Circles/Divisions, directing them to adhere to the mandatory provisions contained in Section 126 of the Electricity Act 2003 and the procedure prescribed under Clause 6.8, 8.1 of the U.P. Electricity Supply Code 2005 and further directed that in case of failure to comply with the substantive as well as procedural provisions while making assessment and initiating recovery certificate, appropriate disciplinary action shall be taken against the concerned erring officer/employee. The proceedings have been initiated against Executive Engineers

who erred in not following the provisions of Clause 6.8 and 8.1 of the U.P. Electricity Supply Code 2005."

On the strength of said affidavit, Shri M.C. Chaturvedi, learned Senior Advocate submits that viz-a-viz to the petitioner, the recovery is already withdrawn and direction is already issued to Chief Engineers (Distribution), Superintending Engineers and Executive Engineers posted in the Varanasi DISCOM, Purvanchal Vidyut Vitran Nigam Ltd. Varanasi of all zones/circles/divisions, to adhere the mandatory provisions contained in Section 126 of the Electricity Act 2003 and the procedure prescribed under Clause 6.8 and 8.1 of the U.P. Electricity Supply Code 2005 and further direction is also issued that in case of failure to comply with the substantive as well as procedural provisions, while making assessment and initiating recovery certificate, appropriate disciplinary action shall be taken against the concerned erring officer/employee. He submits that in compliance of order dated 04.01.2023, a letter no.308 dated 13.01.2023 is also issued by the deponent for strict compliance of the relevant provisions. So far as the relief as has been asked for, the same has already been redressed and the impugned recovery is already withdrawn. He further submits that in similar circumstances, the recovery citation of 531 cases have already been withdrawn.

Considering the facts and circumstances of the case, once the corrective measure is already taken by the competent authority, we are not inclined to proceed further in the matter. Needless to say that the respondents must ensure strict compliance of letter no.308 dated 13.01.2023 issued by the Managing Director, Purvanchal Vidyut Vitran Nigam Ltd., Varanasi.

With the above observation, the writ petition is ***disposed of***.

Order Date :- 13.2.2023

A. Pandey